THE STATE
versus
TINASHE MLAMBO

HIGH COURT OF ZIMBABWE
CHITAPI J
HARARE; 28 July 2026

Criminal Review

CHITAPI J: The accused was convicted by the Magistrate at Bindura Magistrates Court of the offence of unlawful possession of dangerous drugs in violation of s 157(1)(a) of the Criminal Law (Codification and Reform) Act, [*Chapter 9.23*]. He was sentenced on 15 May, 2024 to 14 months imprisonment of that sentence, 4 months were suspended on condition of failure of good behaviour. The remaining 10 months were suspended on condition that the accused performs 350 hours of community at Bindura Traffic Police Offices. The brief facts were that the accused was found in unlawful possession of 480 grammes of dagga on 12 May, 2024 at a house in Woodbook, Bindura.

On arraignment the accused who had been arraigned with his brother whose trial was separated, pleaded guilty. The record of proceedings shows that the guilty plea trial was not conducted in terms of the peremptory provisions of s 271(2)(b) as read with s 271(3) of the Criminal Procedure and Evidence Act [*Chapter 9.07*] raised a query on review for the Magistrates comment as follows:

> "There is no explanation for the charge nor the recording of the explanation before the accused was called upon to plead. Explain the omission and the reason thereof."

In the response the learned magistrate whom I must unfortunately name being TL Ndokera took a defensive stance and sought to justify his obvious and apparent omission to defer to and follow statutory provisions to the latter. His response is reproduced herein as follows:

> "The charge was read to the accused person a duly interpreted by the Court interpreter to him. The State outline was read to him and the essential elements were canvassed. This was in my view adequate explanation to him.
> I however stand guided."

I am in great doubt on whether or not the learned magistrate Mr Ndokera has bothered to read and be guided by Superior Court authority on the proper approach and procedure to adopt in the disposal of cases by guilty trial procedure.

The learned magistrate then stated that the charge was read to the accused and interpreted into the offenders' language after which the accused pleaded guilty whereafter facts were read out and essential elements canvassed. He then stated astonishingly as follows:

> "…In my view the reading of the charge to the accused person and the subsequent interpretation into his language is an adequate explanation. Its clarity is furthered by the electing of essential elements. Thus, I am on the view that the charge was duly explained to him. I stand guided."

It is clear that the learned magistrate in crafting the response was not advised to consider the concepts of pending precedent and state *decis*. He may also not been have bothered to read decided cases which bind him. He appears not to have understood the query. The procedure for disposal of a case by way of a guilty plea include the peremptory requirement that the magistrate must explain or unpack the charge to ascertain that the accused understands the charge. The magistrate must record the explanation which he has given to the accused. The review court needs to know that the magistrate gave the accused the correct explanation. This ensures that the accused has knowingly pleaded to an offence which he or she appreciates. The attention of the learned magistrate is drawn to the provisions of s 271(3) of the Criminal Procedure and Evident Act which define what the court which deals with a guilty plea in terms of s 271(2)(b) must do. It says:

> "271(3) where a magistrate proceeds in terms of para (b) of subsection (2) –

(a) the explanation of the charge and the essential elements of the offence; and
(b) any statement of the Acts or ……on which the charge is based referred to in subpara (1) of that para, and
(c) the reply by the accused to the enquiry referred to in sub-para (ii) of that para; and
(d) any statement made to the court by the accused in connection with the offence to which he has pleaded;
shall be recorded (non emphasis)"

The law is that all the listed factors which are conjuctive must each be recorded. Judgments of this court for example *S* v *Jambo* HH 239/22 and *S* v *Mutokodzi* HH 299/21 must be thoroughly read by the learned magistrates, internalized and followed. There is no need for the learned magistrate to be at loggerheads into the superior court.

The record clearly shows that there is no explanation of the charge or its recording. This is a total irregularity which violates the proceedings. However since the accused completed the sentence, to set aside the proceedings would not achieve much purpose. I therefore withhold my certificate.

CHITAPI J:……